

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407018	MACEDO VS PRO LANDSCAPING, INC.	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF DELVIA PRECIADO MACEDO BY JACINTO LEON ESCAMILLA

Tentative Ruling: Granted.

Moving Defendant's Motion to Set Aside Default is granted and the entry of default entered March 20, 2026 is set aside and Defendant is ordered to file their proposed answer within 5 days of this order becoming final.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Motion to Set Aside

The motion must be filed within six months of the clerk's entry of default and also within a "reasonable time" after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.) The motion must also be accompanied by a copy of the answer or other pleading proposed to be filed. (C.C.P. §473(b).)

Here, there is little to no prejudice to Plaintiff's case, which is still proceeding against several other defendants. Moving defendant filed their motion within 2 weeks of default being entered.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504021	HUANG VS KAUER	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF TYLER HUANG BY TYLER HUANG

Tentative Ruling: Instant motion is moot as result of stipulation submitted by parties and signed/approved by court on July 8, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2505265	YIP VS HEDBERG CONSTRUCTION, INC.	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF GEEMAN YIP BY HEDBERG CONSTRUCTION, INC.

Tentative Ruling: Hearing continued to Thursday, July 16, 2026 at 8:30 a.m., Department PS2 to be heard concurrently with related Motion to Strike 1st Amended Complaint.